

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: formal appellate mandate returning the Ellison action to the originating court.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Mandate transmission

Mandate

Issued July 21, 2026.

To the United States District Court for the Western District of Virginia, in *Mara Ellison v. Officer Nolan Rusk*, Civil Action No. SYN-WDVA-25-CV-0733:

The judgment of this Court entered June 30, 2026, is now effective. The Court dismissed for lack of interlocutory jurisdiction Rusk's attempt to obtain appellate reconsideration of the evidentiary basis for Ellison's account. It affirmed the distinct legal ruling denying qualified immunity when the summary-judgment facts are taken in Ellison's favor.

The accompanying published opinion controls the meaning of that disposition. It does not find that Ellison struck or did not strike Rusk, reached or did not reach toward his duty belt, or posed the danger Rusk described. It holds only that the appellate court cannot decide those factual-sufficiency questions now and that the force violated clearly established law under the defined no-danger assumptions.

The district court shall conduct further proceedings consistent with the opinion and judgment. Each party bears its own appellate costs.

Certification and transmission

I certify that this mandate is issued from the docket of the United States Court of Appeals for the Fourth Circuit in No. SYN-CA4-26-CV-4104. It includes the effect of the June 30 judgment after the ordinary rehearing and mandate periods elapsed without a filing that altered issuance. The July 21 release order authorized transmission today.

The district clerk should record receipt, associate this mandate with the January 16 notice of appeal, and proceed under the published opinion. The certified appellate materials do not enlarge the district record or replace the preserved native-media protocol. Questions about trial proof, admissibility, or the ultimate historical sequence remain matters for the originating court under the governing rules.

Electronic copies have been transmitted to counsel for Officer Rusk, counsel for Mara Ellison, and the district clerk. The appellate docket remains available for ordinary inspection. No stay of this mandate is in force.

Issued under the seal of this fictional training docket on July 21, 2026. For the Court, by the Clerk.